



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065



Office of the Sangguniang Bayan

FILE COPY

1st Endorsement
April 8, 2022

3206-09072022-099

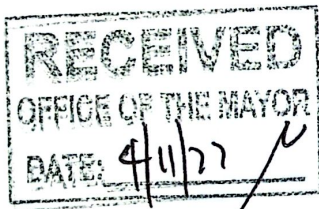
OFFICE OF THE SANGGUNIANG BAYAN
PRIETO DIAZ, SORSOGON 4711

RELEASED

DATE: 04/07/2022 TIME: 1:30 PM

BY: [Signature] REF. NO. 099

Respectfully forwarded to the Honorable Sangguniang Panlalawigan thru Vice Governor Manuel Fortes, Jr., the herein attached Ordinance No. 2022-03 entitled: **"AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORSOGON II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."** for its information, review and appropriate action.



[Signature]
EVIE D. ENAJE
Administrative Aide VI

Cc.

- Hon. Benito L. Doma
Municipal Mayor
- Engr. Exequiel Destura
Municipal Engineer
- Ms. Gemma D. Ferrer
Acting Municipal Treasurer

REPUBLIC OF THE PHILIPPINES
PROVINCE OF SORSOGON

MUNICIPALITY OF PRIETO DIAZ

- File

MUNICIPAL ENGINEERING OFFICE

RECEIVED

DATE: 04-11-22 TIME: 1:06 PM

BY: [Signature]

PROVINCE OF SORSOGON
DOCKET OFFICE

RECEIVED: NAJOY
DATE: 4/8/22
TIME: 10:10 am

Received by
[Signature]
4-11-22
10:15 am

[Signature]
NJOY E. OSORIO
4-11-22
11:10 am



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065



Office of the Sangguniang Bayan

FILE COPY

1st Endorsement
April 5, 2022

3306-04052022-097

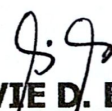
OFFICE OF THE SANGGUNIANG BAYAN
PRIETO DIAZ, SORSOGON 4711

RECEIVED

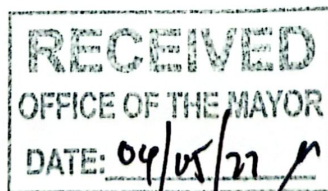
DATE: 04/05/2022 TIME: 10:50 AM

BY: JS REF. NO. 097

Respectfully forwarded to **Hon. BENITO L. DOMA**, Municipal Mayor, the herein attached Ordinance Nos. 2022-03 and 2022-04, entitled: "AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORSOGON II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATIONS/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON." and "AN ORDINANCE APPROVING THE SUPPLEMENTAL BUDGET NO. 1 FOR CY 2022 IN THE GENERAL FUND OF THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON IN THE TOTAL AMOUNT OF TWO MILLION ONE HUNDRED TWENTY THOUSAND FIVE HUNDRED SIXTY-SEVEN PESOS AND 61/100 (P2,120,567.61) ONLY.", for his kind information and signature.


EVIE D. ENAJE
Administrative Aide VI

Encl. a/s





Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 10TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON APRIL 4, 2022 AT ITS SESSION HALL

PRESENT:

Hon. Romeo D. Domasian	Municipal Vice Mayor/Presiding Officer
Hon. Vicente B. Bayoca	S. B. Member
Hon. Avon D. Domalaon	-do-
Hon. Albert D. Destura	-do-
Hon. Joseph H. Yap, Jr.	-do-
Hon. Rodolfo D. Uy	-do-
Hon. Florence D. Detecio	-do-
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Ronniel D. Diolata	SKMF Pres. /S. B. Member

ABSENT:

Hon. Edwin B. Destajo	S. B. Member/on leave
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ORDINANCE NO. 2022-03

Re-introduced by Hon. Florence Detecio

AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORSOGON II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

Be it ordained by the Sangguniang Bayan of the Prieto Diaz in session assembled that:

WHEREAS, the increasing number of electric posts/poles in the municipality pose hazard to traffic and safety of the public if they are not well-maintained;

WHEREAS, it is for this reason that the Local Government Unit imposes some form of regulation thereon;

WHEREAS, under the Local Government Code, the municipality is vested with authority to impose regulatory fees and charges for activities and undertakings being done in the municipality;

SECTION 1. IMPOSITION OF FEE

There shall be imposed a regulatory fee on electric posts owned by SORECO II, installed with telecommunication peripherals / cable equipment, erected on government

and/or private lots along government streets, roads, highways and/or alleys at the rate of two hundred pesos (P 250.00) per post per telco/cable company annually.

SECTION 2. INSPECTION AND INVENTORY

For this purpose, the Municipal Engineer shall conduct an annual inspection and inventory of all electric and telecommunication poles, posts and towers in the municipality, commencing from January of every year, indicating the number of Telco/cable companies attached thereto, and submit the same to the Municipal Treasurer for purposes of imposing the fee under this ordinance. The annual inventory of poles/post may be done with the personnel from SORECO II.

SECTION 3. POLES/POSTS OWNED BY THE NATIONAL GOVERNMENT

The provision of Section 1 hereof shall not apply to poles, posts or towers erected or owned by the national government and its instrumentalities.

SECTION 4. APPLICABILITY OF OTHER ORDINANCES/LAWS

The pertinent provisions of the existing Revenue Code, Municipal Ordinance No. 2016-10 covering the imposition of Mayor's Permit Fee and other appropriate administrative provisions thereof shall apply in the imposition of the fee under this ordinance.

SECTION 5. EFFECTIVITY

This Ordinance shall take effect upon approval and completion of the posting/publication requirement as stated in the Local Government Code of 1991.

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Manuel Fortes Jr.; copy furnished Hon. Benito L. Doma, Municipal Mayor; Engr. Exequiel Destura, Municipal Engineer; Ms. Gemma D. Ferrer, Acting Municipal Treasurer; The General Manager, SORECO II and all concerned for their information and appropriation action.

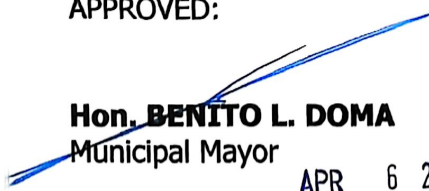
I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA - YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. ROMEO D. DOMASIAN
Municipal Vice Mayor/Presiding Officer

APPROVED:


Hon. BENITO L. DOMA
Municipal Mayor

APR 6 2022



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building, Gov. Augusto G. Ortiz Drive corner, Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

May 13, 2022

TRANSMITTAL NO. **225-2022**

TRANSMITTAL FOR: **THE HONORABLE SANGGUNIANG BAYAN**
Thru: **Ms. BERNADETTE E. YAO**
Secretary to the Sangguniang Bayan
LGU – Prieto Diaz, Sorsogon

Respectfully transmitting a copy of resolution approved by the 10th Provincial Board on **April 25, 2022 (141st Regular Session)** for your information and reference.

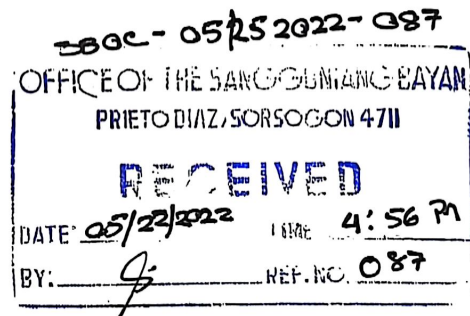
RESOLUTION NO. 164-2022

RESOLUTION DECLARING INVALID PRIETO DIAZ ORDINANCE NO. 2022-03 – AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORECO II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.

Transmitted by:


FATIMA FURIO-RUIZ

Acting Secretary to the Sangguniang Panlalawigan





Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700

EXCERPT FROM THE JOURNAL OF THE 141ST REGULAR SESSION OF THE 10TH PROVINCIAL BOARD ON APRIL 25, 2022 AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Manuel L. Fortes, Jr, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. Krunimar Antonio D. Escudero, MDMG
Hon. John Ryan C. Dioneda
Hon. Francisco L. Ravanilla
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Arze G. Glipo
Hon. Roland R. Añonuevo
Hon. John Paul "Ton" E. Erlano
Hon. Juan G. Guysayko
Hon. Ramil M. Robles

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Roxan M. Escanilla – Provincial President, Sangguniang Kabataan Federation

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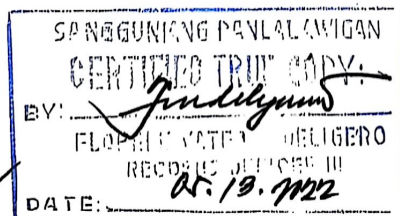
RESOLUTION NO. 164-2022

RESOLUTION DECLARING INVALID PRIETO DIAZ ORDINANCE NO. 2022-03 – AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORECO II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Ordinance No. 2022-03 for review and appropriate action;

WHEREAS, the increasing number of electric posts/poles in the municipality pose hazard to traffic and endangers the public;

WHEREAS, Section I of the ordinance imposes fee amounting to Two Hundred Fifty Pesos (P250.00) for every pole/post erected in the territorial jurisdiction of the municipality. The fee is already 40% of the rental fee being paid by cable and telecommunication companies for the attached equipment and peripherals. SORECO II has more than 200 electric posts in the municipality of Prieto Diaz. The Board finds the fee excessive. It also learned that the municipality did not conduct the required public hearing as mandated under Section 186 of RA 7160 or the Local Government Code of 1991;



WHEREAS, the Municipality of Prieto Diaz did not follow the necessary requirements set by law in the enactment of an ordinance imposing fees and charges. RA 7160 strictly provides:

“Section 186. Power to Levy Other Taxes, Fees or Charges. - Local government units may exercise the power to levy taxes, fees or charges on any base or subject not otherwise specifically enumerated herein or taxed under the provisions of the National Internal Revenue Code, as amended, or other applicable laws: Provided, That the taxes, fees, or charges shall not be unjust, excessive, oppressive, confiscatory or contrary to declared national policy: Provided, further, That the ordinance levying such taxes, fees or charges shall not be enacted without any prior public hearing conducted for the purpose;”

WHEREAS, the Board finds subject ordinance *ultra vires* as provided in Local Government Code of 1991;

NOW, THEREFORE, on motion of Hon. John Ryan C. Dioneda, duly seconded by Hon. Jose Arturo D. Enano, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE INVALID PRIETO DIAZ ORDINANCE NO. 2022-03 – AN ORDINANCE IMPOSING REGULATORY FEES ON ELECTRIC POSTS/POLES OWNED BY SORECO II ELECTRIC COOPERATIVE (SORECO II) ATTACHED WITH TELECOMMUNICATION/CABLE EQUIPMENT AND PERIPHERALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.**

LET COPIES of this resolution be furnished Mayor Benito L. Doma and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information and guidance.

APPROVED.

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I HEREBY CERTIFY to the correctness of the foregoing.


FATIMA F. RUIZ

Acting Secretary to the Sangguniang Panlalawigan

ATTESTED:


ATTY. MANUEL L. FORTES, JR.
Vice Governor/ Presiding Officer

